

THOMAS, J., concurring in judgment

standard does not comport with our judicial duty under Article III because it elevates demonstrably erroneous decisions—meaning decisions outside the realm of permissible interpretation—over the text of the Constitution and other duly enacted federal law.” *Gamble v. United States*, 587 U. S. 678, 711 (2019) (concurring opinion). There is considerable evidence that the phrase “trial . . . by . . . jury” in the Sixth Amendment was understood since the founding to require that a felony guilty verdict be unanimous. Because our precedents are thus not outside the realm of permissible interpretation, I will apply them.

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Blackstone—“the preeminent authority on English law for the founding generation,” *Alden v. Maine*, 527 U. S. 706, 715 (1999)—wrote that no subject can “be affected either in his property, his liberty, or his person, but by the unanimous consent” of a jury, 3 W. Blackstone, *Commentaries on the Laws of England* 379 (1772); see also 4 *id.*, at 343. Another influential treatise author, Hale, wrote that “the law of England hath afforded the best method of trial, that is possible, . . . namely by a jury . . . all concurring in the same judgment.” 1 M. Hale, *Pleas of the Crown* 33 (1736) (emphasis deleted). Such views continued in scholarly works throughout the early Republic. See, e. g., 2 J. Story, *Commentaries on the Constitution of the United States* § 777, p. 248 (1833); 6 N. Dane, *Digest of American Law*, ch. LXXXII, Art. 2, § 1, p. 226 (1824); 2 J. Wilson, *Works of the Honourable James Wilson* 349–350 (1804).

The uniform practice among the States was in accord. Despite isolated 17th-century colonial practices allowing non-unanimous juries, “unanimity became the accepted rule during the 18th century, as Americans became more familiar with the details of English common law and adopted those details in their own colonial legal systems.” *Apodaca*, *supra*, at 408, n. 3 (plurality opinion). In the founding era,